Though the President has no constitutional discretion, he/she has some situational discretion. In other words, the President can act on his/her discretion (that is, without the advice of the ministers) under the following situations:

(i) Appointment of Prime Minister when no party has a clear majority in the Lok Sabha or when the Prime Minister in office dies suddenly and there is no obvious successor.

(ii) Dismissal of the council of ministers when it cannot prove the confidence of the Lok Sabha.

(iii) Dissolution of the Lok Sabha if the council of ministers has lost its majority.

Table 18.3 Articles Related to President at a Glance

Article No.	Subject-matter
52.	The President of India
53.	Executive power of the Union
54.	Election of President
55.	Manner of election of President
56.	Term of office of President
57.	Eligibility for re-election
58.	Qualifications for election as President
59.	Conditions of President's office
60.	Oath or affirmation by the President
61.	Procedure for impeachment of the President
62.	Time of holding election to fill vacancy in the office of President
65.	Vice-President to act as President or to discharge his functions